

Case :- WRIT - C No. - 18043 of 2022

Petitioner :- Sanjida Khatoon @ Sahida Begam

Respondent :- Purvanchal Vidyut Vitran Nigam Shakti Bhawan Lucknow And Another

Counsel for Petitioner :- Manoj Kumar Singh

Counsel for Respondent :- Udit Chandra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vikram D. Chauhan,J.

Heard learned counsel for petitioner, Sri Udit Chandra, learned counsel for contesting respondent and Sri Devesh Vikarm, learned Standing Counsel for the State-respondent.

The present petition has been filed for the following reliefs:-

"I. Issue a writ order or direction in the nature of Certiorari for set aside Recovery Certificate (R.C.) dated 06.06.2022.

II. Issue a writ, order or direction in the nature of mandamus directing the respondents for correction of actual bill amount of petitioner's connection No.8712111069930."

At the very outset, Sri Udit Chandra, learned counsel for respondent raised preliminary objection regarding maintainability of the writ petition on the ground that Electricity Supply Code, 2005 (Code) is self-contained and in case of assessment and consequent recovery full fledged mechanism is provided. If the petitioner is aggrieved, she may invoke the remedy as per Clause 6.5 of the Code for redressal of her grievance.

The Court has proceeded to examine the record in question and find substance in the objection raised by learned counsel for the respondents. However, in the interest of justice, without expressing any opinion on the merits of the issue and with the consent, the writ petition stands disposed of with observation that in case the petitioner moves representation ventilating her grievances before the competent authority within two weeks, the same shall be considered and decided strictly within five weeks, thereafter. For a period of eight weeks or till the disposal of the said application, whichever is earlier, no coercive action shall be taken against the petitioner pursuant to order impugned provided she cooperates with the investigation in question. The petitioner is also directed to pay regular electricity bill month by month, failing which this interim protection shall stand vacated automatically.

Order Date :- 1.7.2022

S.K.